

23NWLC13740 23NWLC13740

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-07-10

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CY%2C07%2F10%2F2026

Source SHA-256: 2a66686473591dab3b14e78bf6c72e638c438bc2a0b3b87ed04e82436e6cc0bc

Case Number: 23NWLC13740 Hearing Date: July 10, 2026 Dept: Y

23NWLC13740: MIDLAND CREDIT MANAGEMENT, INC vs KENNETH SCOTT, AN INDIVIDUAL

Tentative Ruling:

The Court has read and reviewed Defendant Kenneth Scott's ("Defendant") Motion to Vacate Default Judgment ("Motion") filed on January 8, 2026. The Court has also reviewed all relevant court records. Plaintiff Midland Credit Management, Inc. ("Plaintiff") has not filed an opposition.

The Court notes that Request for Entry of Default was entered on August 2, 2023 and Default Judgment was entered on August 8, 2023.

In his Motion, Defendant argues that the judgment is void for lack of personal jurisdiction because Defendant was never properly served with the Summons and Complaint and did not reside at the address where the service was allegedly made.

The Court notes that Proof of Service of Summons by a registered process server by personal service was filed with the Court on June 5, 2023 creating a presumption of service under Evidence Code section 647. The Proof of Service of Summons indicates personal service on "Kenneth Scott" at 15327 Woodruff Pl, Apt 102, Bellflower, CA 90706. It describes the individual as "a black-haired black male...35-45 years of age...5'8-5"10, weighing 180-200 lbs."

Defendant's declaration, which was signed under penalty of perjury, states that he did not live at that address on the date of service. He had no actual notice of this lawsuit until after judgment was entered. Defendant's declaration, which was signed under penalty of perjury, states that he did not live at that address on the date of service. He had no actual notice of this lawsuit until after judgment was entered. Defendant also provides bank statements from June 2023 which identify a different address than the service address. Here, the Court finds that Defendant has rebutted the presumption of service.

Pursuant to Code of Civil Procedure section 473(d), the Court may set aside any void judgment or order. A motion pursuant to Code of Civil Procedure section 473(d) can be brought at any time after judgment. In California Capital Insurance Company v. Hoehn (2024) 17 Cal.5th 207, the California Supreme Court ruled that a motion to vacate a void judgment due to improper service of process under Code of Civil Procedure section 473(d) is not subject to an arbitrary two-year time limit.

Code of Civil Procedure section 128 also grants jurisdiction to the Court to take appropriate action in the interests of justice.

The Court GRANTS Defendant's Motion and vacates and sets aside the Default Judgment entered on August 8, 2023.

The Court grants Defendant 20 days leave to file a responsive pleading.

Clerk to give notice.